IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR THE COUNTY OF WASHINGTON

ANNIKA ERIKSSON, Plaintiff,
vs.
DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14, SHADOW WOOD HOMEOWNERS ASSOCIATION, OREGON DEPARTMENT OF JUSTICE DIVISION OF CHILD SUPPORT, ACCOUNTS RECEIVABLE, INC., AGUSTINA L. MONCKTON, GERALD G. MONCKTON, JR., JP MORGAN CHASE BANK, TURNING LEAF HOMES, LLC, AND ALL OTHER PARTIES UNKNOWN AT THIS TIME, Defendants.
Case No.: 23CV50085

SUMMONS

To All Defendants:
You are hereby required to appear and defend the Complaint filed against you in the above entitled action within 30 days from the date of service of this summons upon you; and if you fail to appear or defend, plaintiff will apply to the court for the relief demanded in the complaint.

NOTICE TO DEFENDANT: READ THESE PAPERS CAREFULLY!

You must "appear" in this case or the other side will win automatically. To "appear" you must file with the court a legal document called a "motion" or "answer." The "motion" or "answer" must be given to the court clerk or administrator within 30 days along with the required filing fee. It must be in proper form and have proof of service on the plaintiff's attorney or, if the plaintiff does not have an attorney, proof of service on the plaintiff.

If you have questions, you should see an attorney immediately. If you need help in finding an attorney, you may contact the Oregon State Bar's Lawyer Referral Service online at www.oregonstatebar.org or by calling (503) 684-3763 (in the Portland metropolitan area) or toll-free elsewhere in Oregon at (800) 452-7636.

Dated: December 30, 2023

Filed December 7:
COMPLAINT TO QUIET TITLE

This is an action to quiet title and remove any unlawful clouds or uncertainties about interests in the real property located at 1730 SW 203rd Ave, Beaverton, OR 97003 (the "Property").

I. Parties and Jurisdiction

1. Plaintiff Annika Eriksson is the record owner of the Property by virtue of a Bargain and Sale Deed recorded on December 20, 2021, as Document No. 2021-130007 in Washington County, Oregon. As owner, Plaintiff holds both title to the Property the statutory redemption rights attendant to that ownership. Accordingly, Plaintiff has standing to bring this quiet title action to determine the validity of any competing claims or interests in the Property adverse to Plaintiff's.

2. The Defendants in this action include Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14 ("Deutsche Bank"), JP Morgan Chase Bank, Mortgage Electronic Registration Systems, Inc. (MERS), Shadow Wood Homeowners Association, Oregon Department of Justice Division of Child Support, Accounts Receivable, Inc., Agustina L. Monckton, Gerald G. Monckton, Jr., Turning Leaf Homes, LLC, and all other parties unknown at this time.

3. This Court has subject matter jurisdiction over this title dispute under ORS 105.605 and ORCP 33 and personal jurisdiction over Defendants as Plaintiff seeks a binding determination regarding interests in real property located within Washington County, Oregon.

4. Plaintiff has complied with the notification requirements of ORS 21.105 by mailing notice of this action by certified mail to all persons having or claiming any interest or estate in the Property which is the subject of this action.

II. Background and Relevant Cases

On July 25, 2006, Defendants Agustina L. Monckton and Gerald G. Monckton, Jr. executed a promissory note in the amount of $232,000 and secured by the deed of trust recorded as Instrument No. 2006-100654 in Washington County, Oregon. Defendant Mortgage Electronic Registration Systems, Inc. (MERS) was the original beneficiary of the Deed of Trust and assigned its interest to Deutsche Bank in Instrument No. 2013-036028, dated April 10, 2013.

The relevant cases pertaining to the Property include:

1. Agustina L. and Gerald G. Monckton, Jr.'s Chapter 13 bankruptcy case (Oregon Bankruptcy Court Case No. 11-31792), filed on March 8, 2011 and converted to Chapter 7 on May 20, 2015 and discharged November 4, 2015. ("The Monckton Bankruptcy")

2. The first foreclosure case against the Property (Washington County Case No. C160198CV), filed on January 21, 2016 and dismissed on January 11, 2018 ("the first foreclosure").

3. The second foreclosure case (Washington County Case No. 18CV01284), filed on January 10, 2018 and resulting in a Judgment of Foreclosure entered on December 17, 2018 followed by a sheriff sale held on June 8, 2023 ("the second foreclosure").

Plaintiff has been unable to obtain clear title insurance or a lien release due to the unresolved secured interests of record. To date, Plaintiff has only been able to review limited documentation provided or publicly available, yet her title investigation has uncovered inconsistencies which warrant further review. Through this action and the equitable powers of this Court, Plaintiff intends to conduct relevant discovery of additional documentation and testimonial evidence from Defendants and third parties such as the bankruptcy courts relating to transfers of the Note and associated Deed of Trust since origination. Plaintiff has reason to believe such discovery will demonstrate the invalidity of Defendant's security interests and their lack of lawful authority over the subject Property.

Plaintiff has reason to believe these secured interests were intended to be paid and released through a "short sale" transaction approved by the US Bankruptcy Court in the Monckton bankruptcy. A Supplemental Compensation Report by their attorney Ted Troutman appears to support this. Attorney Ted Troutman, who represented the Moncktons in the bankruptcy and foreclosure proceedings, possesses critical information which would resolve outstanding questions regarding the satisfaction of liens and reconveyance of security interests burdening the Property. Judicial intervention is needed to compel discovery from Attorney Troutman, who has not produced documentation resolving the lien issues despite requests. Correspondence from the attorney who represented Turning Leaf Homes during the Monckton bankruptcy indicated that payments may have been made to parties separately. Through this action, Plaintiff seeks the resolution of security interests burdening the Property determine the true nature of the clouds on Plaintiff's validly acquired title.

After taking title subject to the second foreclosure judgment, plaintiff attempted to address her concerns but Deutsche Bank would not join her as a defendant. Plaintiff's objection to the sheriff sale on the basis of due process but was overruled even though her foreclosure judgment did not encompass her interests as a bona fide purchaser for value.

III. Claims and Allegations

Defendants Shadow Wood Homeowners Association, Oregon Department of Justice Division of Child Support, and Accounts Receivable Inc. may assert liens against the Property, but Plaintiff's title has priority.

Defendant JP Morgan Chase Bank was also a party in interest with a lien to the property but was not named in the foreclosure suits.

Defendants Agustina L. Monckton and Gerald G. Monckton, Jr. owned the property from 1989 to 2014 and may assert claims or uncertain interests in the Property that could affect the validity of Plaintiff's title.

Defendant Turning Leaf Homes, LLC, held title to the Property from 2014-2021 and may assert claims or uncertain interests in the Property that could affect the validity of Plaintiff's title.

Plaintiff alleges that a party must hold and possess the original promissory note to have standing in a foreclosure suit, and she reasonably believes that Deutsche Bank's failure to provide clear evidence of holding and possessing the original Note undermines their standing to foreclose on the Property.

Plaintiff alleges that Deutsche Bank failed to establish unambiguous possession and control of the original promissory note and contends that the second foreclosure was conducted without standing and remains void per Oregon law.

On March 14, 2013, Deutsche Bank filed a Motion for Relief from the Automatic Stay in the Monckton bankruptcy and referred to GMAC Mortgage, LLC as the "note holder", stating that any future foreclosure action would be conducted by GMAC Mortgage, LLC. Ted Troutman, the Monckton's bankruptcy attorney, filed a proof of claim on behalf of GMAC Mortgage, LLC, also a debtor in a United States Bankruptcy Court case. It is unclear whether the Monckton's loan was listed among the assets of GMAC Mortgage, LLC.

Deutsche Bank's confusing statements in the Monckton bankruptcy demonstrate an inability to prove unambiguous possession and control of the singular original Note and therefore cast doubt upon their standing to foreclose.

Plaintiff further alleges that Defendant Deutsche Bank has produced inconsistent copies of promissory note endorsements, first in the Monckton bankruptcy and again in the first and second foreclosure action against the property. These discrepancies call into question Deutsche Bank's standing to foreclose and render the 2018 foreclosure judgment and resulting sheriff's sale voidable as nullities obtained through fraud on the court.

Plaintiff also raises concerns about the validity of MERS' assignment of its beneficial interest to Deutsche Bank. As the original beneficiary of the Deed of Trust, MERS would thus hold a dormant claim or cloud on title that could arise if MERS' assignment of its beneficial interest to Deutsche Bank was invalid.

IV. Prayer for Relief

Therefore, Plaintiff requests the Court to quiet title in her name as bona fide purchaser superior to all other claims, declaratory relief determining nature and extent of all interested parties and voiding unsupported liens, injunctive relief, alternative relief including reformation or cancellation of instruments as needed, costs and fees, and for such other relief as may be just and equitable.

NOTICE OF PENDENCY OF AN ACTION

NOTICE IS HEREBY GIVEN pursuant to ORS 93.740 that on December 7, 2023, Plaintiff Annika Eriksson commenced an action in the Circuit Court of the State of Oregon for

Washington County against for Quiet Title regarding ownership of the real property located at 1730 SW 203rd Ave., Beaverton, OR 97003 and more particularly described as follows:

LOT 165, SHADOW WOOD NO. 5, IN THE COUNTY OF WASHINGTON AND STATE OF OREGON.
APN: R290991

The purpose of this action is to determine interests and validity of claims against Plaintiff's title to the Property. Plaintiff alleges Defendants lacked lawful authority to foreclose due to defects in securitization of the underlying loan, as well as deficiencies in the foreclosure proceedings and sheriff's sale purporting to transfer ownership.

Filed:
NOTICE OF APPEARANCE OF DEUTSCHE BANK

PLEASE TAKE NOTICE that Joseph T. McCormick III of the law firm of Wright, Finlay & Zak, LLP, without waiving defenses, hereby appears for Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14.

MOTION TO EXTEND TIME FOR SERVICE

Plaintiff moves this court for a 90-day extension of time to serve all defendants pursuant to ORS 12.020, ORCP 7 D(3), and OR. UTCR 7.020.

Given the documented service backlogs at the Sheriffs' offices, Plaintiff respectfully requests a 90-day extension of time to complete service on all current defendants, avoid dismissal, and allow the action to remain commenced as of the original December 7, 2023 filing date pursuant to ORS 12.020.

DECLARATION OF COUNSEL IN SUPPORT OF REQUEST FOR JUDICIAL NOTICE

Joseph T. McCormick III, attorney for Deutsche Bank, declares and provides true and correct copies of key documents from the case as exhibits, including the Deed of Trust, Assignment, Complaint, Foreclosure Judgment, motions filed by Eriksson, court rulings, and Sheriff's Deed.

MOTION OF DEUTSCHE BANK TO DISMISS PLAINTIFF'S COMPLAINT

Deutsche Bank moves to dismiss the Complaint for failure to state a claim under ORCP 21 A(8). The key arguments are:

1) Res judicata and issue preclusion bar Eriksson's claims, which already were adjudicated against her in the prior foreclosure case.

2) Eriksson lacks standing to challenge the assignments of the Deed of Trust, as a non-party to the loan.

3) Eriksson's quiet title claim fails because:
a) She cannot extinguish the Deed of Trust in a quiet title action
b) She lacks standing to contest the loan transfers
c) She has not alleged paying off the loan or any basis to invalidate the foreclosed lien

NOTICE OF NO OPPOSITION TO MOTION TO DISMISS

Deutsche Bank gives notice that Eriksson failed to timely file any opposition to the Motion to Dismiss, so it should be granted as unopposed.

REQUEST FOR LEAVE TO FILE A LATE RESPONSE

Plaintiff acknowledges the untimeliness of the response to Defendant's Motion to Dismiss and requests the Court's permission to accept it despite its tardiness. The delay was unintentional and stemmed from the complexity of legal issues and the need for additional time to gather relevant information.
The delay was relatively short and not prejudicial to the Defendant. Plaintiff faced significant hardship from forced relocation due to the foreclosure at issue, affecting the ability to focus on this matter. Despite the delay, Plaintiff intends to file a forthcoming amended complaint to supplement the existing allegations and join necessary parties, demonstrating diligence in pursuing the quiet title claims and enabling a complete factual record for adjudication.
Considering the limited delay, lack of prejudice, excusable circumstances, and Plaintiff's good faith efforts, leave to file a late response should be granted according to ORCP 15D and the court's discretion. Plaintiff will make every effort to comply with future deadlines.

PLAINTIFF’S RESPONSE TO DEFENDANT’S MOTION TO DISMISS

Plaintiff Annika Eriksson initiated this action to quiet title to the property at 1730 SW 203 Ave., Aloha, Oregon 97003 ("the Property"), seeking to resolve conflicting claims following a series of transactions and legal proceedings. Plaintiff, appearing pro se, submits this Response to the Motion to Dismiss filed by Defendant Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14 (“Deutsche Trust”). Plaintiff contends that the Complaint articulates sufficient ultimate facts to constitute a claim, warranting denial of the Motion to Dismiss for the following grounds:
I. Res Judicata and Issue Preclusion Do Not Apply

This action differs from prior foreclosure litigation as it involves subsequent events and issues arising post-foreclosure. Plaintiff acquired an interest in the Property after the foreclosure and asserts rights based on events transpiring thereafter. Thus, res judicata and issue preclusion do not bar these new claims.

II. Plaintiff Has Standing

Plaintiff has standing to challenge the assignments of the Deed of Trust as she asserts an interest in the Property adversely affected by those assignments. Oregon law allows those with a property interest to contest actions impacting that interest.

III. Quiet Title Claim Is Properly Stated

The Complaint alleges Plaintiff has an interest in the Property adversely affected by Defendants' claims, including the foreclosed Deed of Trust. This adequately states a quiet title claim to resolve conflicting interests.

For the foregoing reasons, the Motion to Dismiss should be denied, allowing this matter to proceed to discovery and trial to adjudicate the parties' respective interests in the Property.

DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14'S REPLY TO RESPONSE TO DISMISS PLAINTIFF'S COMPLAINT

Defendant, Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14 ("Deutsche Trust"), hereby replies to the late response of Plaintiff Annika Ericksson ("Ericksson") as follows.

Ericksson's untimely response conclusively declares, without any discussion of legal authority whatsoever, that Res Judicata and Issue Preclusion do not apply; that she has standing to contest transfers to which she was not a party ; and that she has stated a basis to quiet title. Because she has failed to provide a shred of legal support for her statements, or even address the case law that Deutsche Trust has cited, she has waived her argument by failing to provide any legal support for it. Strowbridge v. Chiloquin, 130 Ore. 444, 449, 277 P. 722, 723 (Or. 1929).

Further, each of Ericksson's conclusory statements is simply incorrect. She claims that this action differs from the prior foreclosure litigation as it involves subsequent events. Response, I. However, this is belied by her complaint and the documents cited in Deutsche Trust's Request for Judicial Notice. Her Complaint clearly shows that she takes issue with actions that occurred years prior to entry of judgment and the sheriff's sale in the Foreclosure Action. Complaint, pp. 2-3. Accordingly, contrary to her claims in her response, the Complaint does not seek to attack issues that arose after the sale. Moreover, she has utterly failed to offer even a conclusory statement for how events that transpired after the sale would give her grounds to attack transfers that occurred before the sale.

Ericksson also claims to have standing to attack the transfers; however, she acquired her interest after those transfers occurred and after a judgment was entered against the property (RJN, Ex. 6, ¶2; ORS 93.740 (2)), and she has failed to set forth anywhere how those transfers

and judgment, which occurred prior to her obtaining her interest, adversely affected any interest she had in the property. Accordingly, she has not shown and cannot show that she has standing to contest the transfers, even if she had brought her claims timely in the right forum. Next, Ericksson conclusively declares without support or legal basis that she has adequately stated a claim to quiet title because she has alleged an interest in the property adversely affected by the foreclosed Deed of Trust. This the incorrect standard, and so even if she had supported her argument with any legal support, it would still fail: a quiet title action cannot lie as to a Deed of Trust because a Deed of Trust is a lien on property. Staton v. Bank of America (BAC) Home Loans Servicing, LP, 2014 U.S. Dist. LEXIS 62377, at *19 (D. Or. May 6, 2014); Rich v. Wells Fargo Bank, N.A., 2014 U.S. Dist. LEXIS 82662, at *2 (D. Or. June 18, 2014). Further, she has not stated any basis to void the sale and quiet title in her favor because she has not alleged and cannot show that the judgment and sale were void. Simply put, Deutsche owns the property; she does not.

As the quiet title statute states:

ORS 105.605. The property at issue is in Deutsche Trust's actual possession, and her Request to File Late Response concedes that the property is not in hers. See, Request, p. 1. Under the statute, she lacks standing to pursue a quiet title action. Estate of Hendrickson v. Warburton, 276 Or. 989, 998 n.6, 557 P.2d 224, 229 (1976) (a complaint to quiet title must allege that the property was "not in the actual possession of another.") As Ericksson concedes that she is not in actual possession of the subject property, she cannot maintain an action to quiet title.

As Deutsche Trust has shown in detail, Ericksson is openly attempting to relitigate motions that she filed in the Foreclosure Action, which were denied, and which she did not appeal. See, Request for Judicial Notice, generally. Ericksson is attempting impermissibly to use this case to attack decrees entered in another state court case; she has failed to allege any basis under which the prior judgment and orders would be void, and so her attempt to collaterally attack those rulings is simply not available to her. Even if there were errors entered in the prior litigation (which she has failed to allege), those actions would have been voidable, which is only subject to direct attack, as in, via appeal. Tektronix, Inc. v. Dep't of Revenue, 22 Or. Tax 12, 15 (2014); Ketcham v. Selles, 304 Or. 529, 534, 748 P.2d 67, 71 (1987). Moreover, the last order entered in the Foreclosure Action was entered on June 19, 2023; as her time to appeal the last of the orders in the prior case lapsed 30 days after entry of that last order, she has no available means to attack or undermine those rulings. ORS 138.071(1) ("a notice of

Any person claiming an interest or estate in real property not in the actual possession of another may maintain a suit in equity against another who claims an adverse interest or estate therein for the purpose of determining such

conflicting or adverse claims, interests or estates.

appeal must be served and filed not later than 30 days after the judgment or order appealed from was entered in the register.")

Deutsche Trust therefore asks that the Court grant its motion to dismiss in its entirety and dismiss the case as to it with prejudice and without leave to amend.

ORDER GRANTING DEFENDANT DEUTSCHE BANK'S MOTION TO DISMISS WITH PREJUDICE

This matter came before the court for hearing on Defendant Deutsche Bank's Motion to Dismiss.
Plaintiff Failed to Appear.
Defendant Deutsche Bank was represented by attorney Joseph McCormick III (by video).
After review of the case and the pleadings therein,
The court orders:
Defendant Deutsche Bank's Motion to Dismiss with prejudice is hereby granted.

MOTION TO SET ASIDE DISMISSAL AND RESCHEDULE HEARING ON DEFENDANT'S MOTION TO DISMISS

Plaintiff Annika Eriksson, proceeding pro se, respectfully moves this Honorable Court to set aside the dismissal with prejudice entered on May 13, 2024, and to reschedule the hearing on Defendant Deutsche Bank's Motion to Dismiss. This motion is supported by new allegations regarding Aldridge Pite's actions on behalf of Deutsche Bank, which are directly related to the claim of excusable neglect, as well as new evidence about Deutsche Bank failing to join JPMorgan Chase Bank as an indispensable party to the foreclosure action, rendering the foreclosure judgment void.
In support of this motion, Plaintiff states as follows:
Introduction and Background: Plaintiff Annika Eriksson is the rightful owner of the property located at 1730 SW 203rd Ave, Beaverton, OR 97003, having obtained title on December 20, 2021. The property was subject to an improper foreclosure on a crisis-era mortgage loan, leading Plaintiff to file a quiet title action to establish clear ownership.
Aldridge Pite's Actions and Excusable Neglect: In January and February of 2024, Aldridge Pite, without a formal eviction process, changed the locks on the property, affecting Plaintiff's tenant. This forced relocation, despite Plaintiff having nearly vacated the property, caused significant undue stress and hardship. Living in Oregon City without reliable transportation, these actions directly contributed to Plaintiff's inability to attend the scheduled hearing on May 13, 2024. On the morning of the scheduled hearing, my sole means of transportation was through a friend who had agreed to drive me, as I do not own a car and reside over an hour away from the courthouse. Unfortunately, my friend overslept and did not wake up despite my repeated calls, resulting in our inability to arrive at the courthouse in time for the 9:30 AM hearing. This constitutes excusable neglect under ORCP 71 B(1) and warrants relief from the dismissal, as the Plaintiff was materially hindered by circumstances beyond her control.
Failure to Join JPMorgan Chase Bank Voids Judgment: The failure to properly join JPMorgan Chase Bank as a necessary party in the foreclosure proceedings, despite Deutsche Bank's actual knowledge of Chase's interest in the property, supports the argument that the foreclosure judgment is void. This oversight constitutes a deprivation of Chase's due process rights and undermines the validity of the foreclosure judgment, rendering it void ab initio. This critical procedural defect directly impacts the legitimacy of the dismissal based on such a judgment.
Deutsche Bank’s Selective Presentation of Evidence : Deutsche Bank has selectively presented evidence, notably omitting exhibits that underscore discrepancies in the endorsements on the promissory note between the 2016 and 2018 foreclosure cases. This selective omission

undermines the integrity of the judicial process by withholding critical information from the Court's consideration and impedes a complete and impartial review of all relevant evidence. The judicial process relies on the full and fair presentation of evidence to ensure justice is served. By selectively presenting evidence, Deutsche Bank has deprived the Court of the opportunity to consider the entirety of the factual and legal context surrounding this foreclosure action. It is therefore respectfully requested that the Court set aside the dismissal to allow for a comprehensive review of all evidence, including the previously omitted exhibits, to uphold the principles of fairness, due process, and the integrity of the judicial system.

Request to Set Aside Dismissal and Reschedule Hearing: Plaintiff respectfully requests that this Honorable Court grant this Motion to Set Aside Dismissal and Reschedule Hearing on Defendant's Motion to Dismiss. Given the excusable neglect resulting from Aldridge Pite's actions and the void nature of the foreclosure judgment due to the nonjoinder of JPMorgan Chase Bank, Plaintiff requests that the Court set aside the dismissal with prejudice. This will allow Plaintiff the opportunity to present her case fully, including the new allegations and their implications for the case's outcome. Plaintiff further requests that the Court reschedule the hearing on Defendant's Motion to Dismiss. This will provide Plaintiff with a fair opportunity to respond to the motion and to present her arguments and evidence, including the new allegations regarding Aldridge Pite's actions and the failure to join JPMorgan Chase Bank. Rescheduling the hearing will serve the interests of justice by ensuring that all parties' claims and defenses are fully heard.

WHEREFORE, Plaintiff Annika Eriksson respectfully requests that this Honorable Court grant this Motion to Set Aside Dismissal and Reschedule Hearing on Defendant's Motion to Dismiss, and for such other and further relief as the Court deems just and proper.

DECLARATION IN SUPPORT OF MOTION TO SET ASIDE DISMISSAL AND RESCHEDULE HEARING

I, Casey Conant, affirm that I am a personal acquaintance of Annika Eriksson, the Plaintiff in this case. Having known Annika for over two years, I've witnessed her profound care for her home and community.

This declaration supports my friend Annika Eriksson's motion to undo the dismissal of her case against Deutsche Bank Trust Company Americas and others concerning her home.

Throughout the past two years of our acquaintance, I've seen Annika's commitment to maintaining her property and actively engaging in community affairs.

Regarding the missed court hearing on May 13, 2024, leading to the dismissal of Annika's case, I can confirm the circumstances that prevented her attendance:

On the morning of May 13, 2024, I was supposed to provide transportation for Ms. Eriksson to her 9:30 am court hearing concerning the motion to dismiss her case against Deutsche Bank Trust Company Americas and others. Unfortunately, I overslept and didn't wake up until Annika called me at 7:45 am to confirm my departure.

At that point, I hadn't left my residence, which is about 25 minutes away from Annika's home. The courthouse is an additional hour's drive from her house. Despite my efforts to expedite my

departure after her 7:45 am call, the combination of my late start and the commute made it impossible to arrive at the courthouse before the 9:30 am hearing.
This oversight stemmed from my oversleeping, causing a delay in my departure. However, this isolated incident doesn't reflect Annika's usual diligence and persistence in pursuing her case. Annika fully intended to attend the hearing and diligently pursue her legal claims. Her absence was solely due to unforeseen and exceptional circumstances, which diverged from her typical case management.
Throughout this process, I've witnessed Annika's sincere efforts to protect her rights and comply with court requirements, despite representing herself. Her failure to appear was not out of disregard for the court but due to transportation issues beyond her control.
I've observed Annika's struggles with the foreclosure process and her attempts to resolve property title disputes. I believe her claims are valid, and she has faced unfair treatment by the opposing party.
I stand behind Annika's efforts to defend her property and address title concerns. Her motion is essential for achieving justice and resolving the outstanding issues in her case.
I affirm that the facts presented in Annika's motion are true and accurate to the best of my knowledge. I trust the court will permit her case to proceed.
I certify that the information in this motion is accurate to the best of my knowledge.

DECLARATION IN SUPPORT OF MOTION TO SET ASIDE DISMISSAL AND RESCHEDULE HEARING

I, Annika Eriksson, declare as follows in support of my Motion to Set Aside Dismissal:
1. I am the Plaintiff in this matter, and I am competent to testify to the matters stated herein.
2. I obtained title to the real property known as 1730 SW 203rd Ave, Beaverton, OR 97003 on December 20, 2021.
3. The property had been subject to an improper foreclosure on a crisis-era mortgage loan. After unsuccessful attempts at raising my concerns by filing motions in the previous foreclosure case, I filed a quiet title action to correct the cloud on my title and establish clear ownership of the property.
4. I have discovered and am now able to present irrefutable evidence supporting my claim of superior title to the Subject Property, specifically, that it is superior to Deutsche Bank's void foreclosure judgment.
5. Through my research, I have found evidence that Deutsche Bank failed to properly notify JPMorgan Chase Bank (Chase) about the foreclosure proceedings, despite being aware of Chase's interest in the property. This is evident from Deutsche Bank's own filings in the borrower's 2013 bankruptcy case, which acknowledged Chase's $58,000 lien.
6. In both the 2016 and 2018 foreclosure suits, Deutsche Bank acknowledged the existence of the second mortgage lien, but failed to include Chase as a defendant. This deprived Chase of due process and the opportunity to be heard in the proceedings. Despite knowing of Chase's interest, Deutsche Bank did not provide proper notice, which is a violation of Chase's rights.
7. This deliberate nature of this oversight is further revealed by Deutsche Bank listing Chase as a defendant on the cover sheets for post-foreclosure recordings related to the property. This

deliberate act constitutes fraud committed upon the court, rendering the entire foreclosure judgment note merely voidable, but void ab initio.
8. Furthermore, Deutsche Bank's foreclosure claim relied on the court's approval of their request to rescind a 2014 document of reconveyance executed by MERS and Chase. For four years, this reconveyance had effectively removed the first mortgage lien from the property. However, Deutsche Bank's failure to provide Chase with an opportunity to object to the rescission of the document constitutes a breach of trust and abuse of the legal process. By employing fraudulent concealment to deceive the court into granting the rescission, Deutsche Bank's actions demonstrate a blatant disregard for the integrity of the legal system.
9. My interest in the property, subject to all liens of record at the time, derived from Turning Leaf Homes, LLC, whose interest was not encumbered by the 2006 mortgage that Deutsche Bank would later foreclose upon through what I allege were fraudulent means. Since Turning Leaf Homes acquired title free and clear of that mortgage lien, and I subsequently obtained my interest from them, my claim of title is superior to Deutsche Bank's purported foreclosure judgment clouding the title, giving me standing to pursue a quiet title action.
10. Additionally, contrary to Deutsche Bank's claim, I was in actual possession of the property on December 7, 2023 (the day I filed this lawsuit) and on December 8, 2023 (the day I recorded a lis pendens in the county recorders office), establishing my standing to bring this action.
11. Subsequently, Deutsche Bank purportedly acquired title to the Subject Property by the recording of a Sheriff's Deed on December 19, 2023. However, this deed is not effective at conveying title to the property due to the fact that it invokes the name of retired Sheriff Pat Garrett, who had retired prior to the alleged conveyance.
12. On January 20 and again on or about February 20, 2024, Aldridge Pite LLP, acting as agents of Deutsche Bank, took aggressive self-help measures to evict me and my bonafide tenant Donald Buckhout despite our good faith attempts to communicate with them. Damages are being sought in Case No. 24SC05266: Donald Buckhout vs Aldridge Pite, LLP, Kimberly Hood.
13. On the morning of May 13, 2024, I was scheduled to attend the hearing at 9:30 AM. I had arranged for transportation with a friend who lives approximately 25 minutes away from my residence in Oregon City. I do not own a vehicle and rely on others for transportation. I contacted my friend early that morning to confirm our arrangement, but there was no response. After multiple attempts, I finally reached her, and she informed me that she had overslept and missed her alarm. By the time she was alerted to the situation, it was clear that we would not be able to reach the courthouse in time for the hearing. This unforeseen incident directly contributed to my absence and constitutes excusable neglect.
14. I have attached a signed declaration from Casey Conant, who had committed to driving me to the courthouse on the day of the hearing. In her declaration, Ms. Conant provides a detailed account of the events that morning, including the reasons she was unable to wake up in time despite our prior arrangement. This unexpected situation significantly contributed to my failure to appear at the hearing and underscores the excusable nature of the neglect.
15. The transportation issue on the day of the scheduled hearing, compounded by Aldridge Pite's actions, prevented my attendance through no fault of my own, and constitute excusable neglect.

16. The dismissal of my case against Deutsche Bank prevents me from fully presenting my new evidence and addressing the defects in Deutsche Bank's claims.
17. Setting aside the dismissal will allow me the opportunity to supplement and amend my complaint and to present unambiguous evidence of fraudulent deprivation of due process and fraud on the court, proving the voidness of the foreclosure by further litigation of the void judgment.
WHEREFORE, Plaintiff Annika Eriksson respectfully requests this Honorable Court grant this Motion to Set Aside Dismissal and Reschedule Hearing on Defendant's Motion to Dismiss for a date that minimizes prejudice to the Defendant..

DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14'S RESPONSE TO MOTION TO SET ASIDE DISMISSAL AND RESCHEDULE HEARING

ORAL ARGUMENT REQUESTED
Deutsche Trust requests audio recording of the hearing and oral argument. The estimated time is 15 minutes. Standard court recording services are requested but official court reporting services are not requested.
1. Plaintiff's Statement of Excusable Neglect Fails to Establish a Basis for Relief.
The Motion alleges that Ericksson was unable to attend the hearing because she was unable to get a ride to the courthouse; however, this ignores the fact that she had the freedom to appear at the hearing remotely via WebEx; indeed, that is how Deutsche Trust's counsel appeared for the hearing. Ericksson apparently made no effort to contact the Court in advance of the hearing about her difficulty appearing in person; if she had, she likely would have been directed to where she could call in. Accordingly, her failure to attend the hearing does not constitute excusable neglect as her failure to attend occurred for reasons beyond difficulty finding a ride to the courthouse.
Vacating a judgment is within the sound jurisdiction of the court. Rogue Valley Mem'l Hosp. v. Salem Ins. Agency, Inc., 265 Or. 603, 606, 510 P.2d 845, 847 (1973). Excusable neglect requires more than an erroneous failure to appear at a hearing. Van Dyke v. Varsity Club, Inc., 103 Or. App. 99, 101, 796 P.2d 382, 383 (1990) (defense attorney's failure to appear for scheduled proceedings was not excusable neglect warranting setting aside judgment even where counsel claimed not to have notice of trial, where court record showed notice was properly mailed). Here, there is no dispute that Ericksson had notice of the court date; when she learned of her difficulty appearing, she had the opportunity to try to call the court (or even Deutsche Trust's counsel) and either obtain the remote hearing information, or try to secure a continuance. She did neither. Accordingly, she has failed to establish that her failure to attend the hearing was a result of excusable neglect.
2. Plaintiff's Motion Fails to Set Forth Any Error That Warrants Relief.
Ericksson offers the conclusory statement that Deutsche Trust's alleged failure to join JP Morgan Chase Bank ("Chase") in the prior Foreclosure Action somehow voids the judgment; however, she utterly fails to explain how and provides zero case law or briefing to support her

claim, thus waiving the argument. Strowbridge v. Chiloquin, 130 Ore. 444, 449, 277 P. 722, 723 (Or. 1929). Regardless, Ericksson ignores the fact that Chase's interest in the property had been released in 2014, prior to the commencement of the Action. RJN, Exhibit 3. (Exhibit 7 to Complaint). Ericksson has failed to allege or show any basis for how Chase could still have an interest in the property to be adjudicated when it released its interest years before the case commenced. Further, even if Ericksson were correct that Chase was erroneously omitted from the prior foreclosure action (which it was not), that would just mean that the foreclosure took place subject to Chase's lien, not that the foreclosure judgment was void.
Finally, Ericksson lacks standing to assert defenses and claims on behalf of Chase. “""Parties have standing to assert only their own legal rights and cannot rest their claims upon the legal rights of third parties. Tyler v. Whetzel, 301 Or. App. 504, 513, 457 P.3d 338, 343 (2019), quoting Concienne v. Asante, 299 Ore. App. 490, 498, 450 P3d 533 (2019). Here, by attempting to evoke Chase's alleged right to have its lien interest adjudicated in the prior foreclosure action, Ericksson seeks to assert rights on behalf of Chase. Such rights not only do not exist due to the release of its lien; Ericksson has utterly failed to establish or even argue how she, as an individual non-borrower who obtained her interest in the property pendente lite after Chase had released its lien, would have standing to assert or litigate any rights on the behalf of the former lienholder Chase. Accordingly, her argument fails in its entirety.
Further, even if Ericksson could show that her failure to attend the hearing was excusable neglect, the Court properly granted the Motion to Dismiss with or without her participation. As the parties thoroughly discussed in briefing the Motion to Dismiss, Ericksson's entire case seeks relief that is not available to her in this action. Accordingly, there were no circumstances under which the Court could not have granted the Motion to Dismiss, and accordingly, there was no prejudice to Ericksson.
Conclusion
3. Deutsche Trust therefore asks that the Court grant deny Plaintiff's Motion.

MOTION FOR RECONSIDERATION OF ORDER DENYING MOTION TO SET ASIDE DISMISSAL

Plaintiff Annika Eriksson respectfully submits this Motion for Reconsideration of the Court's denial of her previous Motion to Set Aside Dismissal and Reschedule Hearing. As detailed in the accompanying Declaration in Support of this Motion, Plaintiff diligently attempted to navigate the court's procedures but faced unforeseeable transportation issues that prevented her attendance at the hearing. This experience underscores the significant barriers to access to justice encountered by self-represented litigants, as further expounded upon in the Declaration. Additionally, Deutsche Bank's request for a hearing on this motion appears contradictory to their argument against rescheduling the previous hearing, further highlighting the merit in allowing the dismissal to be set aside.

The accompanying Declaration provides compelling evidence of the transportation difficulties Plaintiff encountered on the morning of the scheduled hearing, despite her diligent efforts to

attend. It also highlights the challenges faced by pro se litigants in navigating the court system and preparing legal filings with limited time and resources.

Deutsche Bank's assertion that Chase released their interest in the property in 2014 is misleading and inaccurate. If "release" refers to the "Substitution of Trustee and Reconveyance Deed Only" recorded by Chase on November 10, 2014, as Document No. 2014-071931 in Washington County (Exhibit 2), the same document was later claimed by Deutsche Bank to have been recorded "in error." They sought to have this document rescinded in the foreclosure case. The fact remains that the second mortgage remained a valid lien on the property until September 26, 2022, when Chase formally released their interest by recording a reconveyance deed in Document No. 2022-59459 (Exhibit 3). Deutsche Bank’s current claim regarding the intent and effect of the 2014 reconveyance is inconsistent and disingenuous.

Deutsche Bank's argument that there was no due process violation is incorrect and misguided. Although Millennia Mortgage Corporation and MERS were named in the foreclosure lawsuit due to their recorded interest in the second mortgage, Chase, a key party with a significant interest in the property, was notably absent. This omission resulted in Chase not receiving proper notice and an opportunity to defend their interests in the property, which constitutes a fundamental violation of due process. The failure to include Chase in the foreclosure lawsuit compromised the fairness and integrity of the proceedings and subsequently invalidated the judgment. Deutsche Bank's 2022 Writ of Execution cover sheet (Exhibit 4) further acknowledges Chase's interest, underscoring the due process oversight.

Deutsche Bank's statement that there are no circumstances under which the court would deny their Motion to Dismiss is unsubstantiated.

The following recorded deeds support the Plaintiff's claim of ownership:

* Document No. 2014-073078: This document conveys the property from the Moncktons to Turning Leaf Homes, LLC, dated November 17, 2014 (Exhibit 4).
* Document No. 2021-130007: Turning Leaf Homes, LLC conveyed the property to the Plaintiff in this document (Exhibit 5).

In addition, the following legal authorities support Plaintiff’s claims:

* Duckett v. Fuller (Fourth Circuit) provides a thorough examination of non-party preclusion, highlighting the judiciary's cautious approach to extending the reach of a judgment beyond the actual parties, especially when the non-party's interests have not been represented.
* Taylor v. Sturgell underscores the fundamental legal principle that a non-party cannot be bound by a judgment, except under narrow exceptions, and outlines scenarios where non-party preclusion may apply, none of which are relevant to the Plaintiff's situation.
* Richards v. Jefferson County underscores the importance of adequate representation for binding non-parties under a judgment, supporting the Plaintiff's argument that they should not be bound by res judicata due to a lack of representation in the original foreclosure action.

* Martin v. Wilks clarifies that non-parties to litigation are not automatically bound by the judgment, reinforcing the Plaintiff's stance that their lack of formal party status in the initial foreclosure action exempts them from the effects of res judicata.

Applying these legal principles, it is evident that:

* Applying res judicata to the Plaintiff's claims is legally and ethically inappropriate.
* The Plaintiff's unique circumstances and subsequent developments warrant a fair hearing on the merits of their claims.

For the reasons stated herein, as well as those expounded upon in the supporting Declaration, Plaintiff respectfully requests that the Court grant her Motion to Set Aside Dismissal and schedule a new hearing.

DECLARATION IN SUPPORT OF MOTION FOR RECONSIDERATION

I, Annika Eriksson, declare as follows:

I respectfully submit this Declaration in support of my Motion for Reconsideration of the Court's denial of my previous Motion to Set Aside Dismissal and Reschedule Hearing. This declaration aims to provide additional context and detail regarding the circumstances leading to my inability to attend the scheduled hearing on May 13, 2024, and to emphasize the challenges faced by self-represented litigants in accessing justice. Despite my earnest efforts to navigate the court's procedures and despite encountering unforeseeable transportation issues on the morning of the hearing, I regrettably found myself unable to attend. This declaration seeks to shed light on the complexity of preparing legal motions and the time constraints faced by individuals representing themselves in court proceedings.

My inability to attend the hearing was not due to any lack of effort or diligence on my part. Despite attempting to explore all available options, including remote attendance, the circumstances that morning were beyond my control. The Declaration of Casey Conant and my own testimony provide compelling evidence of the transportation difficulties encountered and the lack of viable alternatives. These challenges underscore the systemic issues that self-represented litigants often face in navigating the legal system.

Despite holding a graduate-level education and possessing familiarity with navigating complex systems, I found the court's website overwhelming and lacking in clear and concise information regarding last-minute rescheduling or remote attendance options. This lack of accessible information specifically tailored for self-represented litigants directly impacts the fairness and due process owed to all individuals seeking justice. The court's failure to provide clear guidance in this regard underscores the need for improved transparency and accessibility measures.

Moreover, even if I had known about the option to request a remote appearance, the time required to craft and prepare a simple motion for filing is significant. On the morning of the hearing, there was insufficient time for me to draft, finalize, and file such a motion before the scheduled hearing time. The preparation and filing process for motions is time-consuming, especially for a self-represented litigant without immediate access to legal resources or assistance. This further compounded the difficulties I faced in attempting to participate in the hearing.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

Based upon this Court's order dated May 14, 2024, granting the motion of Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14 ("Deutsche Trust") to dismiss Plaintiff's claims as to it with prejudice, the Court does hereby ORDER AND ADJUDGE:

- Deutsche Trust is hereby dismissed from this case with prejudice.

IN THE COURT OF APPEALS OF THE STATE OF OREGON
Annika Eriksson, Plaintiff-Appellant
(LINE 1-NAME OF PLAINTIFF(S)
Plaintiff-Appellant, or Plaintiff-Respondent,
RESIDENTIAL ACCREDIT LOANS, INC. MORTGAGE ASSET-BACKED
PASS- THROUGH CERTIFICATES SERIES 2006-QS14, Defendant-R,espondent. (LINE 2-NAME OF DEFENDANT(S)
v.
DEUTSCHE BANK TRUST COMPANY. AMERICAS, AS TRUSTEE FOR
,
v.
Washington County
(CIRCUIT COURT NAME)
(a) Annika Eriksson
(b) June 4, 2024 , by Judge (c)
County Circuit Court.
Defendant-Respondent. or Defendant-Appellant.
County Case Number 23VC50085 . (CIRCUIT COURT NUMBER)
NOTICE OF APPEAL 1.
hereby gives notice of appeal from the judgment entered on Erik Bucher in (d) Washington
2.
The parties to this appeal are:
Appellant(s) : Annika Eriksson, P.O. Box 1108 ACP 0030-24, Salem, OR 97308
YOUR NAME, ADDRESS, and PHONE NUMBER (and EMAIL ADDRESS if you agree to receive all court correspondences by email)

(503) 854-5056, erikssona@icloud.com
Deutsche Bank Trust Company Americas, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, Respondent(s): INC. MORTGAGE ASSET-BACKED PASS- THROUGH CERTIFICATES SERIES 2006-QS14
(NAME and ADDRESS)
c/o Joseph McCormick, Wright, Finlay & Zak, LLP
4665 MacArthur Court, Suite 200, Newport Beach, CA 92660
3.
If the respondent (on appeal) is represented by counsel, provide the name, bar number, and add□e□□ □□ □□e □e□□□□de□□□□ a□□□□□e□:
ATTORNEY FOR RESPONDENT: Re□□□□de□□□□ □a□e_____
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Bar #
Address
ATTORNEY FOR RESPONDENT:
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Bar #_____
MORTGAGE ASSET-BACKED PASS- THROUGH CERTIFICATES SERIES 2006-QS14 Joseph T. McCormick III, OSB #182760
Address
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Wright, Finlay & Zak, LLP
4665 MacArthur Court, Suite 200

4.
INDICATE YOUR DESIGNATION OF RECORD
□X Appellant designates the record in its entirety, up to and including the date on which the challenged decision was entered. Therefore, in addition to the trial court file, appellant designates all exhibits submitted, and the record of all oral proceedings that occurred, during that time period.
□ In addition to the trial court file, appellant designates only the following portions of the record:
□ Trial court file only. No exhibits and no oral proceedings.
□ All exhibits.
□ The record of only the following oral proceedings:
5.
COMPLETE ONLY IF LESS THAN THE ENTIRE TRIAL COURT RECORD IS DESIGNATED IN PARAGRAPH 4 ABOVE
Appellant intends to rely upon the following points:
6.
This appeal is timely and otherwise properly filed before the Court of Appeals because:
The judgment was entered on June 4, 2024. The 30-day deadline for filing this notice of appeal fell on July 4, 2024, which is Independence Day, a legal holiday. Therefore, pursuant to Oregon

Rules of Appellate Procedure (ORAP) 1.25(1), the deadline extends to the next business day, which is July 5, 2024. This notice of appeal is being filed on July 5, 2024, within the extended deadline. 7.

Attached to this notice of appeal is a copy of the judgment being appealed from. Also attached are copies of any other orders pertinent to determining appellate jurisdiction.

DATE: July 5, 2024 SIGNATURE:

CERTIFICATE OF FILING

I certify that on July 5, 2024 DATE, I filed the original of the notice of appeal with the State Court Administrator at the following address:

by the following method of filing:

ATTN: Records Section State Court Administrator Supreme Court Building 1163 State Street Salem, OR 97301-2563 INDICATE METHOD OF FILING

□ United States Postal Service, ordinary first class mail.

□ United State Postal Service, certified or registered mail, return receipt requested.

□ Hand delivery

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CERTIFICATE OF SERVICE

I certify that on (DATE), I served a true copy of the notice of appeal to the following parties at the addresses set forth below. NOTE: If an address is not already provided below then you must fill in the address for each party that you serve. If no address is present then the court will assume that you did not serve that party.

RESPONDENT: NAME AND ADDRESS

DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT

LOANS, INC. MORTGAGE ASSET-BACKED PASS- THROUGH CERTIFICATES SERIES 2006-QS14

TRIAL COURT ADMINISTRATOR: TRIAL COURT ADDRESS

Richard E. Moellmer, Trial Court Administrator, Washington County Circuit Court, Washington County Courthouse, 150 N 1st Avenue MS37, Hillsboro, OR 97124

TRANSCRIPT COORDINATOR: TRIAL COURT ADDRESS

Trial Court Transcript Coordinator, Washington County Circuit Court, Washington County Courthouse, 150 N 1st Avenue MS37, Hillsboro, OR 97124

OTHER PARTIES: NAME AND ADDRESS by the following method of service:

INDICATE METHOD OF SERVICE

□ United States Postal Service, ordinary first class mail.

□ United State Postal Service, certified or registered mail, return receipt requested.

□ Hand delivery

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DATE: July 5, 2024 SIGNATURE: